Law, Policy, Norms and AI

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introduction

Society & social organisation

Social relationships

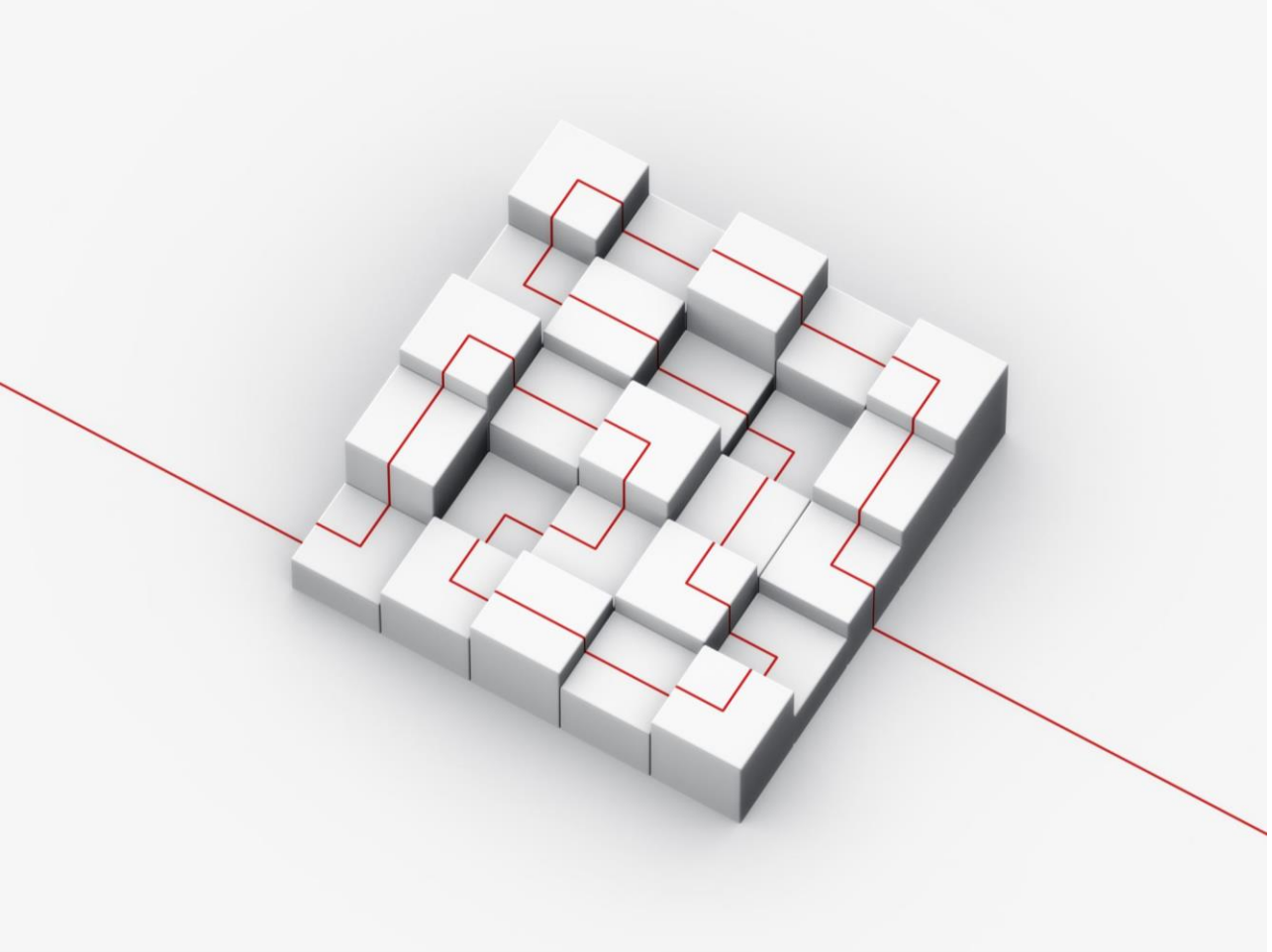
Sociological analysis

Abductive reasoning

Machine-in-the-loop







How are law, norms and policy related and how do they intersect?

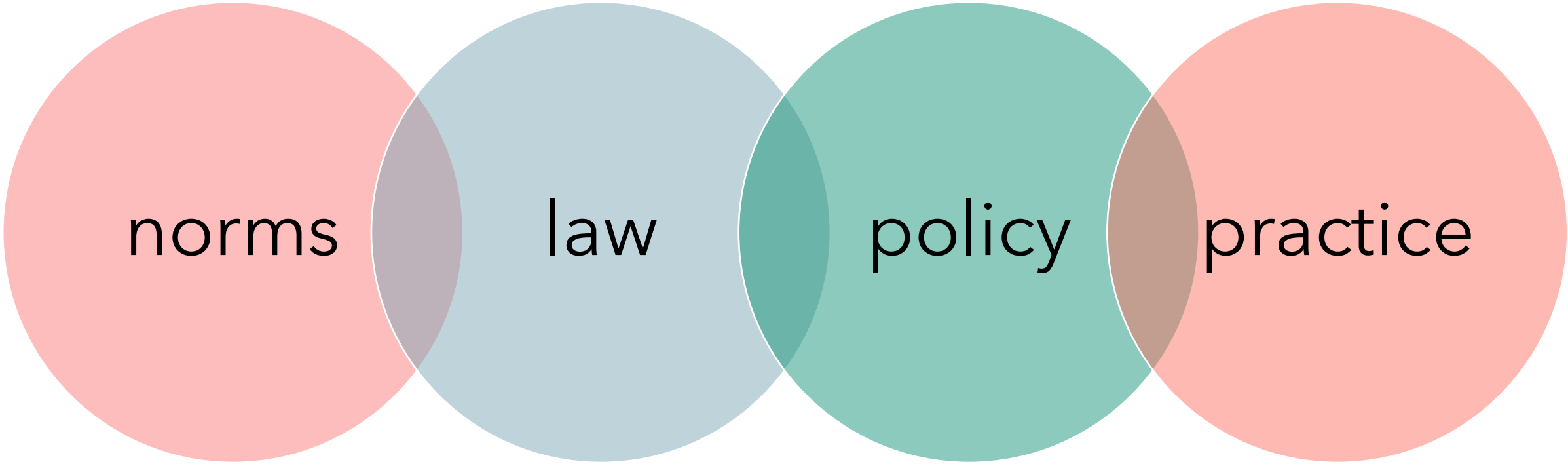
How are the differences relevant to the practices of AI system design and regulation?

What do those differences look like in practice?

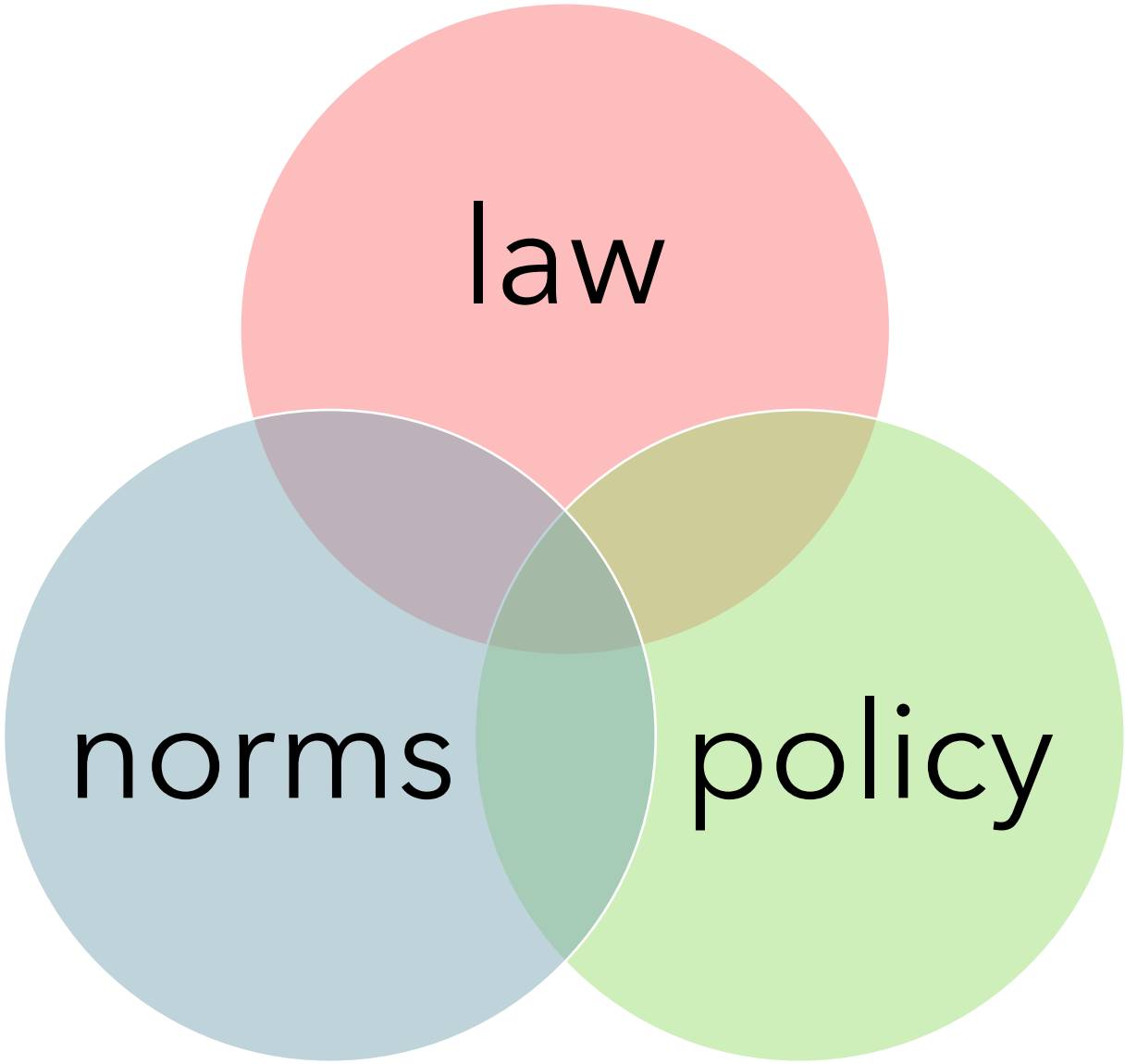
What are the implications of this evaluative mapping for AI system design & regulation?

outline

law, policy, norms



law, policy, norms



Law

Provides rights and protections representing a ‘community’ standard of expectations

Standards for judging (assessing) competing rights and protections & those of different bearers of rights and protections *as they apply to particular persons*

Process for these assessments varies by community and type of law





(Public) policy

Parses preferences *through & on behalf of others,* incl. incommensurate objectives and claims

Prioritises the pursuit of such preferences in time, through ontological reasoning about the world and *categories of person*

Provides procedures for parsing and prioritization in subordinate institutions

Based on ethical judgements, normative judgements, and ontological reasonings about the world

Rightful purpose also requires rightful authority to act on behalf of others





Norms

May be linked to ethical precepts, but does not need to be

Presents what is *currently* 'the norm'

What is reproduced by practice & habituation, unreflexively

Reproduced in institutions as well as communities; 'knits these together'

The anomalous case is 'different' but not necessarily 'wrong'

Different norms are recursively related to different epistemologies by domain, institutional setting and context.

Norms can be incommensurable even in one domain



Practice



Human trafficking

(with Thao Do)

Anti-trafficking AI systems

(with Thao Do)



Domain: not just high stakes, but "socially sensitive"; legal and policy tensions



Settings: epistemically uncertain, socially complex, institutional norms incommensurable



Socio-technical relationships: rightful purpose may assign unrightful authority (e.g. surveillance).



Social care

AI-supported social care



Domain: not just high stakes, but "socially sensitive"; legal and policy tensions



Settings: epistemically uncertain, socially complex, institutional and inter-personal norms maybe incommensurable



Socio-technical relationships: transience, complexity contingency of need make the socio-technical intervention difficult to safeguard

Implications



Relation, significance and relevance of norms, policy and law vary



They differ by domain, setting and socio-technical relations



They each offer ways of co-ordinating social rules that

- manage the relationship between anomalies and the norm;
- commensurate between interests or objectives



They use different forms of reasoning & in cases of ‘social sensitivity’ (Do), must consider high levels of epistemic uncertainty and ethical complexity.